

Amended by:

		Official Journal		
		No	page	date
► <u>M1</u>	Council Directive 2007/61/EC of 26 September 2007	L 258	27	4.10.2007
► <u>M2</u>	Regulation (EU) No 1021/2013 of the European Parliament and of the Council of 9 October 2013	L 287	1	29.10.2013
► <u>M3</u>	Directive (EU) 2024/1438 of the European Parliament and of the Council of 14 May 2024	L 1438	1	24.5.2024

Amended by:

► <u>A1</u>	Act concerning the conditions of accession of the Czech Republic, the Republic of Estonia, the Republic of Cyprus, the Republic of Latvia, the Republic of Lithuania, the Republic of Hungary, the Republic of Malta, the Republic of Poland, the Republic of Slovenia and the Slovak Republic and the adjustments to the Treaties on which the European Union is founded	L 236	33	23.9.2003
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▼B**COUNCIL DIRECTIVE 2001/114/EC****of 20 December 2001****relating to certain partly or wholly dehydrated preserved milk for human consumption***Article 1*

This Directive shall apply to partly or wholly dehydrated preserved milk defined in Annex I.

▼M1**▼B***Article 3***▼M3**

Regulation (EU) No 1169/2011 of the European Parliament and of the Council ⁽¹⁾ shall apply to the products defined in Annex I to this Directive, subject to the following conditions:

▼B

1. (a) The product names listed in Annex I shall apply only to the products referred to therein and shall, without prejudice to subparagraph (b), be used in trade to designate them;
- (b) as an alternative to the product names referred to in subparagraph (a), Annex II provides a list of particular designations. These designations may be used in the language and under the conditions laid down in Annex II.
2. The labelling must state the percentage of milk fat, expressed by weight in relation to the finished product, except in the case of the products defined in Annex I(1)(d) and (g) and Annex I(2)(d), and the percentage of fat-free dried milk extract in the case of the products defined in Annex I(1). These particulars shall appear near the trade name.
3. In the case of the products defined in Annex I(2), the label must state the recommendations as to the method of dilution or reconstitution, including details of the fat content of the product thus diluted or reconstituted.
4. Where products weighing less than 20 g per unit are packed in an outer packaging, the particulars required by this Article need appear on the outer packaging only, except for the designation required by point 1(a).
5. The labelling of the products defined in Annex I(2) shall state that the product is 'not intended as a food for infants under 12 months'.

⁽¹⁾ Regulation (EU) No 1169/2011 of the European Parliament and of the Council of 25 October 2011 on the provision of food information to consumers, amending Regulations (EC) No 1924/2006 and (EC) No 1925/2006 of the European Parliament and of the Council, and repealing Commission Directive 87/250/EEC, Council Directive 90/496/EEC, Commission Directive 1999/10/EC, Directive 2000/13/EC of the European Parliament and of the Council, Commission Directives 2002/67/EC and 2008/5/EC and Commission Regulation (EC) No 608/2004 (OJ L 304, 22.11.2011, p. 18).

▼ B*Article 4*

For the products defined in Annexes I and II, Member States shall not adopt national provisions not provided for by this Directive.

▼ M2**▼ B***Article 7*

Directive 76/118/EEC is hereby repealed with effect from 17 July 2003.

References to the repealed Directive shall be construed as references to this Directive.

Article 8

Member States shall bring into force the laws, regulations and administrative provisions necessary to comply with this Directive before 17 July 2003. They shall forthwith inform the Commission thereof.

The measures shall be applied so as to:

- authorise the marketing of the products defined in Annex I if they conform to the definitions and rules laid down in this Directive, with effect from 17 July 2003,
- prohibit the marketing of products which fail to conform to this Directive, with effect from 17 July 2004.

However, the marketing of products which fail to conform to this Directive but which were labelled before 17 July 2004 in accordance with Directive 76/118/EEC shall be permitted until stocks run out.

When Member States adopt these measures these shall contain a reference to this Directive or shall be accompanied by such reference at the time of their official publication. The procedure for such reference shall be adopted by Member States.

Article 9

This Directive shall enter into force on the day of its publication in the *Official Journal of the European Communities*.

Article 10

This Directive is addressed to the Member States.

▼B*ANNEX I***DEFINITIONS OF PRODUCTS AND PRODUCT NAMES**

1. Partly dehydrated milk

▼M1

This means the liquid product, whether or not sweetened, obtained by the partial removal of water from milk, from wholly or partly skimmed milk or from a mixture of these products, which may have an admixture of cream or of wholly dehydrated milk or both, the addition of wholly dehydrated milk not to exceed, in the finished products, 25 % of total milk solids.

▼B

— Types of unsweetened condensed milk

(a) Condensed high-fat milk

Partly dehydrated milk containing, by weight, not less than 15 % fat, and not less than 26,5 % total milk solids.

(b) Condensed milk

Partly dehydrated milk containing, by weight, not less than 7,5 % fat and not less than 25 % total milk solids.

(c) Condensed, partly skimmed milk

Partly dehydrated milk containing, by weight, not less than 1 % and less than 7,5 % fat, and not less than 20 % total milk solids.

(d) Condensed skimmed milk

Partly dehydrated milk containing, by weight, not more than 1 % fat and not less than 20 % total milk solids.

— Types of sweetened condensed milk

(e) Sweetened condensed milk

Partly dehydrated milk with an admixture of sucrose (semi-white sugar, white sugar or extra-white sugar) and containing, by weight, not less than 8 % fat and not less than 28 % total milk solids.

(f) Sweetened condensed, partly skimmed milk

Partly dehydrated milk with an admixture of sucrose (semi-white sugar, white sugar or extra-white sugar) and containing, by weight, not less than 1 % and less than 8 % fat, and not less than 24 % total milk solids.

(g) Sweetened condensed skimmed milk

Partly dehydrated milk with an admixture of sucrose (semi-white sugar, white sugar or extra-white sugar) and containing, by weight, not more than 1 % fat and not less than 24 % total milk solids.

▼ B

2. Totally dehydrated milk

▼ M1

This means the solid product, where the water content does not exceed 5 % by weight of the finished product, obtained by the removal of water from milk, from wholly or partly skimmed milk, from cream or from a mixture of these products.

▼ B

(a) Dried high-fat milk or high-fat milk powder

Dehydrated milk containing, by weight, not less than 42 % fat.

(b) Dried whole milk or whole milk powder

Dehydrated milk containing, by weight, not less than 26 % and less than 42 % fat.

(c) Dried partly skimmed milk or partly skimmed-milk powder

Dehydrated milk with a fat content of more than 1,5 % and less than 26 % by weight.

(d) Dried skimmed milk or skimmed-milk powder

Dehydrated milk containing, by weight, not more than 1,5 % fat.

3. Treatments

(a) An additional quantity of lactose not greater than 0,03 % by weight of the finished product is authorised for the manufacture of the products defined in 1(e) to (g).

(b) ► **M1** Without prejudice to Regulation (EC) No 853/2004 of the European Parliament and of the Council of 29 April 2004 laying down specific hygiene rules for food of animal origin⁽¹⁾, the preservation of the products referred to in paragraphs 1 and 2 shall be achieved: ◀

— by heat-treatment (sterilisation, UHT, etc.), for the products referred to in 1(a) to (d),

— by the addition of sucrose, for the products referred to in 1(e) to (g),

— by dehydration, for the products referred to in 2.

▼ M1

(c) Without prejudice to the compositional requirements of points 1 and 2 of this Annex the protein content of milk may be adjusted to a minimum content of 34 % by weight (expressed on fat free dry matter), by the addition and/or withdrawal of milk constituents in such a way as not to alter the whey protein to casein ratio of the milk being adjusted.

▼ M3

(d) Reduction of the lactose content by conversion to glucose and galactose. Modifications in the composition of milk as a result of this treatment shall be allowed only if they are indelibly indicated on the packing of the product so that it can be easily seen and read. Such indication is without prejudice to the obligation regarding nutrition labelling laid down by Regulation (EU) No 1169/2011. Member States may limit or prohibit modifications to the composition of milk referred to in this subpoint.

⁽¹⁾ OJ L 139, 30.4.2004, p. 55. Corrected by OJ L 226, 25.6.2004, p. 22.

▼ M1

4. Authorised additions and raw materials

- (a) Vitamins and minerals in accordance with Regulation (EC) No 1925/2006 of the European Parliament and of the Council of 20 of December 2006, on the addition of vitamins and minerals and of certain other substances to foods ⁽¹⁾.
- (b) Authorised raw materials for protein adjustment purposes referred to in point 3(c) shall be as follows:
 - (i) Milk retentate

Milk retentate is the product obtained by concentrating milk protein by ultra filtration of milk, partly skimmed milk, or skimmed milk;
 - (ii) Milk permeate

Milk permeate is the product obtained by removing milk proteins and milk fat from milk, partly skimmed milk, or skimmed milk by ultra filtration; and
 - (iii) Lactose

Lactose is a natural constituent of milk normally obtained from whey with an anhydrous lactose content of not less than 99,0 % m/m on a dry basis. It may be anhydrous or contain one molecule of water of crystallisation or be a mixture of both forms.

▼ M3

- (c) Authorised food enzymes in accordance with Regulation (EC) No 1332/2008 of the European Parliament and of the Council ⁽²⁾.
- (d) Authorised food additives in accordance with Regulation (EC) No 1333/2008 of the European Parliament and of the Council ⁽³⁾.

⁽¹⁾ OJ L 404, 30.12.2006, p. 26.

⁽²⁾ Regulation (EC) No 1332/2008 of the European Parliament and of the Council of 16 December 2008 on food enzymes and amending Council Directive 83/417/EEC, Council Regulation (EC) No 1493/1999, Directive 2000/13/EC, Council Directive 2001/112/EC and Regulation (EC) No 258/97 (OJ L 354, 31.12.2008, p. 7).

⁽³⁾ Regulation (EC) No 1333/2008 of the European Parliament and of the Council of 16 December 2008 on food additives (OJ L 354, 31.12.2008, p. 16).

▼B*ANNEX II***PARTICULAR DESIGNATIONS FOR CERTAIN PRODUCTS LISTED IN ANNEX I****▼M3**

- (a) The English term ‘evaporated milk’ means the product defined in Annex I (1)(b).

▼B

- (b) The French terms ‘lait demi-écrémé concentré’ and ‘lait demi-écrémé concentré non sucré’, the Spanish term ‘leche evaporada semidesnatada’, the Dutch terms ‘geëvaporeerde halfvolle melk’ or ‘halfvolle koffiemelk’ and the English term ‘evaporated semi-skimmed milk’ mean the product defined in Annex I(1)(c) containing, by weight, between 4 % and 4,5 % fat and not less than 24 % total solids.
- (c) The Danish term ‘kondenseret kaffefløde’ and the German term ‘kondensierte Kaffeesahne’ mean the product defined in Annex I(1)(a).
- (d) The Danish term ‘flødepulver’, the German terms ‘Rahmpulver’ and ‘Sahnepulver’, the French term ‘crème en poudre’, the Dutch term ‘roompoeder’, the Swedish term ‘gräddpulver’ and the Finnish term ‘kermajauhe’ mean the product defined in Annex I(2)(a).
- (e) The French term ‘lait demi-écrémé concentré sucré’, the Spanish term ‘leche condensada semidesnatada’ and the Dutch term ‘gecondenseerde halfvolle melk met suiker’ mean the product defined in Annex I(1)(f) containing, by weight, between 4 % and 4,5 % fat and not less than 28 % total milk solids.
- (f) The French term ‘lait demi-écrémé en poudre’, the Dutch term ‘halfvolle melkpoeder’ and the English terms ‘semi-skimmed milk powder’ or ‘dried semi-skimmed milk’ mean the product defined in Annex I(2)(c) with a fat content of between 14 % and 16 %.
- (g) The Portuguese term ‘leite em pó meio gordo’ means the product defined in Annex I(2)(c) with a fat content of between 13 % and 26 %.
- (h) The Dutch term ‘koffiemelk’ means the product defined in Annex I(1)(b).
- (i) The Finnish term ‘rasvaton maitojauhe’ means the product defined in Annex I(2)(d).
- (j) The Spanish term ‘leche en polvo semidesnatada’ means the product defined in Annex I(2)(c) with a fat content of between 10 % and 16 %.
- ▼A1**
- (k) The Maltese term ‘Halib evaporat’ means the product defined in Annex I(1)(b).
- (l) The Maltese term ‘Halib evaporat b’kontenut baxx ta’ xaham’ means the product defined in Annex I(1)(c).
- (m) The Estonian term ‘koorepulber’ means the product defined in Annex I(2)(a).
- (n) The Estonian term ‘piimapulber’ means the product defined in Annex I(2)(b).
- (o) The Estonian term ‘väherasvane kondenspiim’ means the product defined in Annex I(1)(c).

▼ A1

- (p) The Estonian term 'magustatud väherasvane kondenspiim' means the product defined in Annex I(1)(f).
- (q) The Estonian term 'väherasvane piimapulber' means the product defined in Annex I(2)(c).
- (r) The Czech term 'zahuštěná neslazená smetana' means the product defined in Annex I (1)(a).
- (s) The Czech term 'zahuštěné neslazené plnotučné mléko' means the product defined in Annex I (1)(b).
- (t) The Czech term 'zahuštěné neslazené polotučné mléko' means the product defined in Annex I (1)(c) containing, by weight, between 4 % and 4,5 % fat.
- (u) The Czech term 'zahuštěné slazené plnotučné mléko' means the product defined in Annex I (1)(e).
- (v) The Czech term 'zahuštěné slazené polotučné mléko' means the product defined in Annex I (1)(f) containing, by weight, between 4 % and 4,5 % fat.
- (w) The Czech term 'sušená smetana' means the product defined in Annex I (2)(a).
- (x) The Czech term 'sušené polotučné mléko' means the product defined in Annex I (2)(c) containing, by weight, between 14 % and 16 % fat.